

23NWCV00752 23NWCV00752

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TABORA ET AL. v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 23NWCV00752

HEARING: Tuesday, July
21, 2026, at 9:30 AM

I.

Plaintiffs' Motion for Attorney's Fees

is GRANTED in the amount

of \$7,367.50

in attorney's

fees and \$1,679.56. in costs.

II.

Defendant's Motion to Tax Costs is GRANTED in part.

This amount is to be paid by no later than 90 days
from the date of the Court's issuance of this Order. This date may be extended
by agreement of the parties.

Moving Party to give
notice.

Background

The relevant procedural history of this case is as follows: On March 14, 2023, Plaintiffs KATHERINE TABORA and ELMER TABORA ("Plaintiffs") filed this "lemon law" action against Defendants AMERICAN HONDA MOTOR CO., INC. ("Defendant") and DOES 1 through 10, inclusive. On May 8, 2025, the parties resolved the case through settlement.

Plaintiffs now move for attorney's fees in the amount of \$37,586.00 with a 1.5 multiplier. Plaintiff also seeks to recoup \$14,498.52 in costs.

Cal. Civ. Code

§1794(d) states, "[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

It is undisputed that Plaintiffs are the prevailing party in this action and are entitled to reasonable attorney's fees. The only issue pending before this Court is the amount of the award.

Legal Standard

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorneys fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest* ("Serrano III") (1977) 20 Cal.3d 25, 48); (See also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted

through the consideration of various factors, including “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorneys reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501); (See also Flannery v. California Highway Patrol (1987) 61 Cal.App.4th 629, 644.) [“We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court.”].

Attorney's Fees

Plaintiffs' Counsels' Firm, Knight Law Group, bills at a rate from \$175/hr to \$625/hr. (See Kirnos Decl., ¶28(a)-(m).) A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexier (2000) 22 Cal.4th 1064, 1095.) The Court finds that Plaintiff Counsels' hourly rates are reasonable.

Plaintiff has established an entitlement to reasonable fees in the amount of \$14,080.50. The Court's determination is undertaken in the exercise of its discretion to determine whether or not rates or hours are reasonable. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501.)

The Court has carefully reviewed the declarations submitted by counsel. The Court agrees with opposing counsel that a few of Plaintiff's entries are purely clerical and excessive.

Moreover,
based on the non-complexity of this case and the routine nature of lemon law litigation, the Court does not find a multiplier reasonable or necessary.

Defendant's

First § 998 Offer: “Subject to Proof” Option

Defendant

contends Plaintiffs are not entitled to fees following Defendant's March 12, 2024, § 998 offer.

Plaintiffs

argue Defendant's March 12, 2024, § 998 is invalid under *Duff v. Jaguar Land Rover North America, LLC* (2022) 74 Cal.App.5th 491 (Duff) because it was not sufficiently specific to allow Plaintiff to meaningfully evaluate the offer. "To be valid, an offer under Code of Civil Procedure section 998 may include nonmonetary terms and conditions, but it must be unconditional. [Citation.] The offer must be sufficiently specific to allow the recipient to meaningfully evaluate it and make a reasoned decision whether to accept it." (Id. at 499.)

In *Duff*, a

manufacturer offered to "repurchase [a] vehicle for \$28,430.80 or greater than that amount if [the plaintiff] "provide[d] documentation to show the amount is more than \$28,430.80.'" (*Duff*, supra, 74 Cal.App.5th at p. 496.) The Court of Appeal determined the manufacturer's 998 offer was invalid because it presented the plaintiff (*Duff*) with "somewhat of a moving target." (Id. at p. 500.) The Court continued, "For example, if *Duff* were awarded an amount over \$28,430.80, say \$30,000, it is not clear, by the terms of the statutory offer that the amount was greater than what Jaguar was offering to pay. Jaguar could argue, based on the evidence offered by *Duff* at trial, that it actually would have paid him more than \$30,000, and thus, *Duff* recovered less than the 998 Offer." (*Ibid.*) The *Duff* Court thus agreed with the lower court's decision that the offer was "not sufficiently specific; judgment could be for \$28,430.80 or for some higher amount that is subject to proof." (*Ibid.*)

Here,

Defendant's 998 offer included several alternative choices for Plaintiffs:

(1) Defendant would repurchase Plaintiffs' vehicle for \$51,000.00.

(2) Defendant would repurchase the vehicle "subject to proof," wherein Defendant would pay Plaintiffs the

past amounts that Plaintiff paid for the vehicle.

(3) Defendant would pay Plaintiffs

\$15,000.00 and allow Plaintiffs to keep the vehicle.

Defendant's

"subject to proof" option stated:

"If there is a dispute as to

legal entitlement and/or the amounts recoverable in paragraphs 2 and 3 above

after submission of the itemization and proof of same, AHM will pay the

undisputed amounts to Plaintiffs. At their election, AHM will allow the Court

to determine disputed amounts either by motion, bench trial, jury trial,

expedited jury trial under Rule 3.1545 of the Rules of Court, or by referee

under Code of Civil Procedure Section 638(a), with Plaintiffs choosing the

dispute resolution process, and Plaintiffs bearing the burden of proof by a

preponderance of the evidence for legal entitlement and the amount of damages

sought."

(Opposition, Ex. B ¶ 4.)

Defendant's "subject to proof"

option is like the invalid itemization option in Duff. Indeed, at the

time Defendant made the offer, Plaintiffs would have no way of knowing how the

Court would rule on recoverable amounts subject to proof. If Plaintiffs

recovered more than \$51,000.00, Defendant's could claim the "subject to proof"

option would have yielded a higher result for Plaintiffs. The Court finds

Defendant's "subject to proof" option was invalid.

Simultaneous Options

A valid CCP § 998 Offer must be sufficiently certain,

specific, or definite in its terms and conditions. (Fassberg Constr.

Co. v. Hous. Auth. of City of Los Angeles (2007) 152 Cal.

App. 4th 720, 764.) There appears to be a split in

authority on the issue; both appellate decisions are currently pending

review.

The Second District Court of Appeal in Gorobets v.

Jaguar Land Rover N. Am., LLC (2024) 105 Cal. App. 5th 913 (Gorobets), found

that a 998 offer is not sufficiently certain if it consists of two offers made at the same time to the same party and leaves it to the offeree which offer to accept. (Id. at p. 920.) The Second District held that nothing in the wording of section 998 prevents a party from making more than one compromise offer to the same opposing party, but section 998 does not allow a party to make multiple offers to the same party at the same time by presenting options because it satisfies only one of section's 998's two certainty requirements.(Id. at pp. 927–928.) It therefore concluded “[a]lthough simultaneous offers are practically unprecedented, and, more to the point, legally ineffective under section 998.” (Id. at 930.)

The Fourth District Court of Appeals expressly disagreed with with Gorobets' conclusion that “simultaneous offers are generally invalid” to shift costs. (Zavala v. Hyundai Motor America (2024) 107 Cal. App. 5th 458,478.) Rather, it held that multiple simultaneous offers to determine whether each is valid is consistent with the purpose of section 998, reasoning as follows:

When, as here, a defendant has extended multiple simultaneous settlement offers under section 998, a trial court may separately evaluate each offer to determine (1) whether it is sufficiently specific and certain to be valid for triggering cost shifting under section 998; and (2) if it is a valid offer, whether the plaintiff obtained a more favorable judgment or award. If the plaintiff's judgment or award is less than the highest valid offer, “the plaintiff shall not recover ... postoffer costs and shall pay the defendant's costs from the time of the offer.” (§ 998, subd. (c)(1).) A trial court's task will not be unduly onerous because we have no doubt that the parties will, during proceedings to award costs, focus the court on the relevant valid offer that is claimed to have triggered cost shifting under section 998.

(Zavala at p. 478.)

Under the doctrine of stare decisis, superior courts are bound by all published decisions of the Court of Appeal, but where there is a split in authority, the superior court may choose which appellate decision to follow. (Auto Equity Sales, Inc. v. Superior Court (1962)

57 Cal.2d 450, 456.)

The Court finds good cause to agree with Zavala. There is no provision in § 998 prohibiting multiple simultaneous offers. Further, the Court finds it can individually evaluate Defendant's options. Indeed, the Court did such when evaluating Defendant's "subject to proof" option.

Critically, as highlighted in Zavala, the parties can focus the Court on the relevant valid offer claimed to trigger cost shifting under § 998. Here, Defendant made an offer to repurchase the subject vehicle for \$51,000. There is no dispute whether the offer to repurchase is valid. Plaintiffs ultimately accepted an offer for \$51,000 and thus, failed Plaintiffs final recovery amount failed to beat Defendant's March 12, 2024, offer.

Thus, the Court strikes all fees and costs incurred after March 12, 2024.

Costs

"A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

"Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308.) However, "mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing." (*Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 896.)

In a lemon law action, as here, Civil Code section 1794, subdivision (d) provides that a prevailing buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." ¿

¿

Civil Code section 1794, subdivision (d)

“permits¿the prevailing buyer to recover both ‘costs’ and ‘expenses.’ Examining the language of the statute [citation], it is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’”¿¿Jensen v. BMW of North America, Inc.¿(1995) 35 Cal.App.4th 112, 137, as¿modified¿on denial of reh'g (June 22, 1995).¿¿The Legislature included awards of “costs and expenses” in the statute ““to cover such out-of-pocket expenses as filing fees, expert witness fees,¿marshall's¿fees, etc.””¿¿Id.¿at 138 (quoting¿Assem. Com. on Labor, Employment & Consumer Affairs, Analysis of¿Assem. Bill No. 3374 (May 24, 1978) at 2.)¿

The Court taxes all costs incurred after March 12, 2024.

Item 5, service of process fees, are not taxed as such costs are recoverable under CC 1033.5(a)(4). The Court also does not tax Item 13, as Civil Code § 1794 allows Plaintiffs to recover other expenses.

Plaintiffs' costs are reduced to \$1,679.56.

CONCLUSION

Accordingly, the Court grants attorney fees in the reduced, but reasonable, amount of \$7,367.50 and costs of \$1,679.56.

Plaintiff's Objection No. 1-5 are OVERRULED.